CRIMINAL LAW

Tuesday, Oct. 6
(Lecture 11)

Hello! This slide will help you prepare for today's class.

- **We will begin by discussing recklessness, including how it is distinct from intent. That conversation will return us to *Buzzanga and Durocher.***
- **Next, we will discuss knowledge and wilful blindness. Please be prepared to discuss the assigned cases.**
- **We will also try using our 'symmetry charts' to reinforce some of the key *AR* and *MR* concepts we have learned so far.**

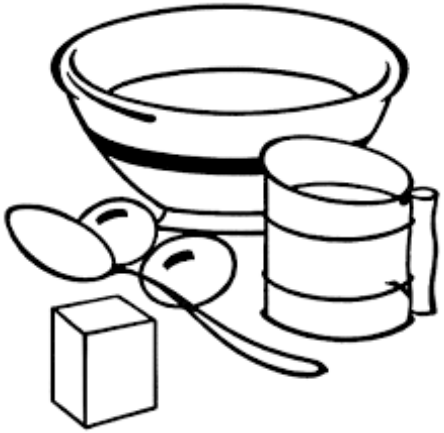
CRIMINAL LAW

Tuesday, October 6
(Lecture 11)

Mens Rea

- **The "guilty mind" or "fault" requirement.**

- The mental component of the crime.



Objectives for Week 6

40. **Explain and apply the concept of recklessness (including by distinguishing it from intent)**

41. Explain and apply the concepts of knowledge and wilful blindness, including their relationship to one another.

Recklessness

Recklessness "is found in the attitude of one who, aware that there is a danger that his conduct could bring about the result prohibited by the criminal law, nevertheless persists, despite the risk.

It is, in other words, the conduct of one who sees the risk and who takes the chance."

(*Sansregret*)

Recklessness

Recklessness "…denote[s] the subjective state of mind of a person who foresees that his conduct may cause the prohibited result, but, nevertheless, takes a deliberate and unjustifiable risk of bringing it about."

(*Buzzanga*)

Intent vs. Recklessness

<u>Scenario 1:</u> Minnie Miner is on strike with her fellow miners. She explodes a bomb in a mineshaft because she wants to kill the 'scab' workers who are working there.

<u>Scenario 2:</u> Minnie Miner is on strike with her fellow miners. She explodes a bomb in a mineshaft because she wants to halt production. She wants to halt production without harming anyone, so she chooses a time when she thinks the mine will almost certainly be empty, but she realizes the death of 'scab' workers could occur.

R. v. Buzzanga and Durocher

S. 319 (2) Every one who, by communicating statements, other than in private conversation, wilfully promotes hatred against any identifiable group is guilty of [a hybrid offence]

Intent vs. Recklessness

<u>Scenario 1:</u> B and D circulate a pamphlet. They want to promote anti-French hatred. (*Intent*)

<u>Scenario 2:</u> B and D circulate a pamphlet. They do not want to promote anti-French hatred, but they realize there is a risk their actions could promote anti-French hatred, and they decide to circulate the pamphlet anyway. (*Recklessness*)

R. v. Buzzanga and Durocher

"[A]s a general rule, a person who foresees that a consequence is certain or substantially certain to result from an act which he does in order to achieve some other purpose, intends that consequence. The actor's foresight of the certainty or moral certainty of the consequence resulting from his conduct compels a conclusion that if he, one the less, acted so as to produce it, then he decided to bring it about (albeit regretfully)…"

Intent vs. Recklessness

Scenario 1: Minnie Miner is on strike with her fellow miners. She explodes a bomb in a mineshaft because she wants to kill the 'scab' workers who are working there.

Scenario 2: B and D circulate a pamphlet. They do not want to promote anti-French hatred, but they realize there is a risk their actions could promote anti-French hatred, and they decide to circulate the pamphlet anyway. (*Recklessness*)

Scenario 3: Minnie Miner is on strike with her fellow miners. She explodes a bomb in a mineshaft because she wants to halt production. She would like to halt production without harming anyone, but she realizes the death of 'scab' workers is substantially certain to occur.

Intent vs. Recklessness

Scenario 1: B and D circulate a pamphlet. They want to promote anti-French hatred. (*Intent*)

Scenario 2: B and D circulate a pamphlet because they want to draw attention to their cause. They do not want to promote anti-French hatred, but they realize there is some risk the promotion of anti-French hatred could occur. (*Recklessness*)

Scenario 3: B and D circulate a pamphlet. They do not want to promote anti-French hatred, but they realize the promotion of anti-French hatred is substantially certain (i.e., morally certain) to occur. (*Intent*)

Objectives for Week 6

40. Explain and apply the concept of recklessness (including by distinguishing it from intent)

41. Explain and apply the concepts of knowledge and wilful blindness, including their relationship to one another.

Knowledge - s. 57(2)

57(2) Every one who, while in or out of Canada, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, makes a written or an oral **statement that he knows is false or misleading** [is guilty of a hybrid offence]

Assault – s. 265(1)(a)

Assault

265 (1) A person commits an assault when

> **(a)** without the consent of another person, he applies force intentionally to that other person, directly or indirectly …

Assault – s. 265(1)(a)

Actus Reus ingredients	*Mens rea ingredients*
Conduct	
Consequence -	
Circumstance -	
Circumstance -	
[Voluntariness]	

265 (1) A person commits an assault when

(a) without the consent of another person, he applies force intentionally to that other person, directly or indirectly …

Assault – s. 265(1)(a)

Actus Reus ingredients	*Mens rea ingredients*
Conduct - **applies force (directly or indirectly)**	
Consequence -	
Circumstance -	
Circumstance -	
[Voluntariness]	

265 (1) A person commits an assault when

(a) without the consent of another person, he ~~applies force~~ intentionally to that other person, ~~directly or indirectly~~ …

Assault – s. 265(1)(a)

Actus Reus ingredients	*Mens rea ingredients*
Conduct - **applies force (directly or indirectly)**	
~~Consequence -~~	
Circumstance -	
Circumstance -	
[Voluntariness]	

265 (1) A person commits an assault when

(a) without the consent of another person, he ~~applies force~~ intentionally to that other person, ~~directly or indirectly~~ …

Assault – s. 265(1)(a)

Actus Reus ingredients	*Mens rea ingredients*
Conduct - **applies force (directly or indirectly)**	
Circumstance - **without consent**	
Circumstance - **to another person**	
[Voluntariness]	

265 (1) A person commits an assault when

(a) ~~without the consent of another person~~, he ~~applies force~~ intentionally ~~to that other person, directly or indirectly~~ …

Assault – s. 265(1)(a)

Actus Reus ingredients	*Mens rea ingredients*
Conduct - **applies force (directly or indirectly)**	**{Intent or recklessness}**
Circumstance - **without consent**	**{Knowledge/wilful blindness}**
Circumstance - **to another person**	**{Knowledge/wilful blindness}**
[Voluntariness]	/

265 (1) A person commits an assault when

(a) ~~without the consent of another person~~, he ~~applies force~~ intentionally ~~to that other person, directly or indirectly~~ …

Assault – s. 265(1)(a)

Actus Reus ingredients	*Mens rea ingredients*
Conduct - **applies force (directly or indirectly)**	**{Intent** ~~or recklessness}~~
Circumstance - **without consent**	**{Knowledge/wilful blindness}**
Circumstance - **to another person**	**{Knowledge/wilful blindness}**
[Voluntariness]	/

265 (1) A person commits an assault when

(a) ~~without the consent of another person~~, he ~~applies force~~ **intentionally** ~~to that other person, directly or indirectly~~ …

Assault – s. 265(1)(a)

Actus Reus ingredients	*Mens rea ingredients*
Conduct - **applies force (directly or indirectly)**	**Intent**
Circumstance - **without consent**	**Knowledge/wilful blindness**
Circumstance - **to another person**	**Knowledge/wilful blindness**
[Voluntariness]	/

265 (1) A person commits an assault when

(a) ~~without the consent of another person~~, he ~~applies force~~ ~~intentionally~~ ~~to that other person~~, ~~directly or indirectly~~ …

Knowledge

"[…] recklessness presupposes knowledge of the likelihood of the prohibited consequences. It is established when it is shown that the accused, with such knowledge, commits acts which may bring about these prohibited consequences, while being reckless as to whether or not they ensue."

(*Théroux*, [1993] 2 SCR 5, 19 [not part of S&C exerpt])

Wilful Blindness

- **“Deliberate ignorance” (Don Stuart)**
- **“An actual process of suppressing a suspicion” (Don Stuart)**
- **Accused “suspected the fact; he realised its probability; but he refrained from obtaining the final confirmation because he wanted in the event to be able to deny knowledge. This, and this alone, is wilful blindness” (Glanville Williams)**

Wilful Blindness

"The doctrine of willful blindness imputes knowledge to an accused whose suspicion is aroused to the point where he or she sees the need for further inquiries, but deliberately chooses not to make those inquiries."

(*Briscoe*, para. 21, S&C at 453)

Edmonton

Nina Courtepatte's mother calls for inquiry into murdered aboriginal women

Courtepatte was murdered in 2005 when she was 13 years old

CBC News · Posted: Aug 23, 2014 9:48 PM EDT | Last Updated: August 23, 2014

Listen to this article
Estimated 3 minutes



Peacha Atkinson looks over photos of her murdered daughter in Hawrelak Park on Saturday, Aug. 23, 2014. Atkinson said she was not surprised by Prime Minister Stephen Harper's dismissal of calls for a national inquiry into missing and murdered aboriginal women and girls. (CBC News)

R. v. Briscoe

In response to a question about whether he knew what was going on during the drive to the location where the murder occurred:

- **"Like, definitely for sure? […] I didn't know exactly what was goin' on."**
- **"[W]hatever you guys wanna do just do it. Don't do it around me I don't want to see nothing I don't know what the f*** you're gonna do."**
- **"That's what I seen. And I was like ahh f*** I don't wanna know."**

R. v. Sansregret

"Wilful blindness is distinct from recklessness because, while recklessness involves knowledge of a danger or risk and persistence in a course of conduct which creates a risk that the prohibited result will occur, wilful blindness arises where a person who has become aware of the need for some inquiry declines to make the inquiry because he does not wish to know the truth. He would prefer to remain ignorant."

R. v. Lagace

"Where an accused makes some inquiry, the question remains whether that accused harboured real suspicions after that inquiry and refrained from making further inquiries because she preferred to remain ignorant of the truth.

Where some inquiry is made, the nature of that inquiry will be an important consideration in determining whether the accused remained suspicious and chose to refrain from further inquiry because she preferred to remain deliberately ignorant of the truth."

R. v. Blondin



R. v. Blondin

"The jury should have been instructed that the onus on the Crown was to prove beyond reasonable doubt that the respondent knew the substance was a narcotic, although not necessarily cannabis resin."

Objectives for Week 6

40. Explain and apply the concept of recklessness (including by distinguishing it from intent)

41. Explain and apply the concepts of knowledge and wilful blindness, including their relationship to one another.

Symmetry

"The fault element should generally extend to all the elements of the prohibited act."

(Kent Roach, *Criminal Law*, 5th ed.)



"The Symmetry Chart"

Actus Reus	*Mens Rea*
Conduct	**Intent *or* Recklessness**
Circumstance	**Knowledge/Wilful Blindness**
Consequence	**Intent *or* Recklessness****
/ / / / /	**Ulterior Purpose**
{Voluntariness}	**/ / / / /**

***** NB – this one is particularly complicated! Stay tuned for our unit on predicate offences***

Let's build a symmetry chart!

Section 262. IMPEDING ATTEMPT TO SAVE LIFE

Every person is guilty of [a hybrid offence] who

(a) prevents or impedes or attempts to prevent or impede any person who is attempting to save his own life.

First, find the conduct…

Section 262. Every person is guilty of [a hybrid offence] who

(a) prevents or impedes or attempts to prevent or impede any person who is attempting to save his own life.

Actus Reus	*Mens Rea*
Conduct:	

First, find the conduct…

Section 262. Every person is guilty of [a hybrid offence] who

(a) ~~prevents or impedes or attempts to prevent or impede~~ any person who is attempting to save his own life.

Actus Reus	*Mens Rea*
Conduct: (attempts to) prevent/impede	

Is there a consequence? A circumstance?

Section 262. Every person is guilty of [a hybrid offence] who

(a) ~~prevents or impedes or attempts to prevent or impede any person who is attempting to save his own life.~~

Actus Reus	*Mens Rea*
Conduct: (attempts to) prevent/impede	
Consequence:	
Circumstance:	

Is there a consequence? A circumstance?

Section 262. Every person is guilty of [a hybrid offence] who

(a) ~~prevents or impedes or attempts to prevent or impede any person who is attempting to save his own life.~~

Actus Reus	*Mens Rea*
Conduct: (attempts to) prevent/impede	
Circumstance: person attempting to save own life	

Any MR language? If not, use your rule of thumb to fill in…

Section 262. Every person is guilty of [a hybrid offence] who

(a) ~~prevents or impedes or attempts to prevent or impede any person who is attempting to save his own life~~.

Actus Reus	*Mens Rea*
Conduct: (attempts to) prevent/impede	
Circumstance: person attempting to save own life	

Any MR language? If not, use your rule of thumb to fill in…

Section 262. Every person is guilty of [a hybrid offence] who

(a) prevents or impedes or attempts to prevent or impede any person who is attempting to save his own life.

Actus Reus	*Mens Rea*
Conduct: (attempts to) prevent/impede	Intent or recklessness
Circumstance: person attempting to save own life	Knowledge/wilful blindness

Symmetry & blameworthiness (1/5)

Section 262. Every person is guilty of [a hybrid offence] who

(a) prevents or impedes or attempts to prevent or impede any person who is attempting to save his own life.

Director has just eaten a cookie with nuts in it, given to her by Thespian. She is having a life-threatening allergic reaction. She rushes backstage to grab her purse, where she keeps her EpiPen (allergy medicine). Stagehand blocks her path in the narrow corridor.

Symmetry & blameworthiness (2/5)

Actus Reus	*Mens Rea*
(Attempts to) prevent/impede	Intent or recklessness
Person attempting to save own life	Knowledge/wilful blindness

Director is rushing to get her EpiPen. Stagehand blocks her path in the narrow corridor. He does not know she is in distress and trying to get her medicine and has a question about the set.

Symmetry & blameworthiness (3/5)

Actus Reus	*Mens Rea*
(Attempts to) prevent/impede	Intent or recklessness
Person attempting to save own life	Knowledge/wilful blindness

Director is rushing to get her EpiPen from her purse. Stagehand realizes Director is having an allergic reaction and tries to help her. He runs back down the corridor and finds her EpiPen for her, but drops it. It rolls under the locked door of a nearby storeroom.

Symmetry & blameworthiness (4/5)

Actus Reus	*Mens Rea*
(Attempts to) prevent/impede	Intent or recklessness
Person attempting to save own life	Knowledge/wilful blindness

Director is rushing to get her EpiPen. Stagehand He blocks her path in the narrow corridor. He realizes Director is having an allergic reaction and needs help. He is trying to prevent her from accessing her medicine to assist his friend, Thespian.

Symmetry & blameworthiness (5/5)

Actus Reus	*Mens Rea*
(Attempts to) prevent/impede	Intent or recklessness
Person attempting to save own life	Knowledge/wilful blindness

Director is rushing to get her EpiPen. Stagehand blocks her path in the narrow corridor. He hears his cellphone ringing and does not want to miss the call. He realizes Director is having an allergic reaction and needs help. He knows he might slow her progress, but he figures she will probably be fine even if he delays her.

Let's build another 'symmetry' chart!

57(2) Every one who, while in or out of Canada, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, makes a written or an oral statement that he knows is false or misleading [is guilty of a hybrid offence]

Start with the conduct – what is it?

Symmetry – *what's next?*

57(2) Every one who, while in or out of Canada, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, makes a written or an oral statement that he knows is false or misleading [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Conduct: Makes written/oral statement	
{Voluntariness}	//////////////////////////

Symmetry – *any mens rea language?*

57(2) Every one who, while in or out of Canada, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, ~~makes a written or an oral statement~~ that he knows is false or misleading [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Conduct: Makes written/oral statement	
Circumstance: false or misleading	
Circumstance: in or out of Canada	
{Voluntariness}	**//////////////////////////**

Symmetry – *what's left?*

57(2) Every one who, ~~while in or out of Canada~~, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, ~~makes a written or an oral statement~~ that he knows is ~~false or misleading~~ [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Makes written/oral statement [conduct]	
Circumstance: false or misleading	Knowledge [or wilful blindness]
Circumstance: in or out of Canada	
{Voluntariness}	//////////////////////////

Symmetry – *what's left?*

57(2) Every one who, ~~while in or out of Canada~~, for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport, ~~makes a written or an oral statement that he knows is false or misleading~~ [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Conduct: Makes written/oral statement	
Circumstance: false or misleading	Knowledge
Circumstance: in or out of Canada	
//////////////////////////	**[Ulterior purpose]** For purpose of procuring passport/material alteration for self/other
{Voluntariness}	//////////////////////////

Symmetry – *now, fill in the blanks!*

57(2) Every one who, ~~while in or out of Canada~~, ~~for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport~~, ~~makes a written or an oral statement that he knows is false or misleading~~ [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Makes written/oral statement **[conduct]**	
Circumstance: false or misleading	Knowledge **[or wilful blindness]**
Circumstance: in or out of Canada	
//////////////////////////	For purpose of procuring passport/material alteration for self/other **[ulterior purpose]**
{Voluntariness}	//////////////////////////

Symmetry – *now, fill in the blanks!*

57(2) Every one who, ~~while in or out of Canada~~, ~~for the purpose of procuring a passport for himself or any other person or for the purpose of procuring any material alteration or addition to any such passport~~, ~~makes a written or an oral statement that he knows is false or misleading~~ [is guilty of a hybrid offence]

Actus Reus	*Mens Rea*
Makes written/oral statement **[conduct]**	**Intent or Recklessness**
Circumstance: false or misleading	**Knowledge [or wilful blindness]**
Circumstance: in or out of Canada	**Knowledge/wilful blindness**
//////////////////////////	**For purpose of procuring passport/material alteration for self/other [ulterior purpose]**
{Voluntariness}	//////////////////////////

Intent vs. Ulterior Purpose

Lotte is Dutch. She fills out a Canadian passport application. She wants to procure a Canadian passport so that she can move to Canada and work without having to obtain a visa. She purposefully checks the box to indicate that one of her parents was born in Canada. She knows both her parents were born in Amsterdam.

What is Lotte's …

- **Ulterior Purpose?**
- Motive?

Intent vs. Ulterior Purpose

Lotte is Dutch. She fills out a Canadian passport application. She wants to procure a Canadian passport so that she can move to Canada and work without having to obtain a visa. She purposefully checks the box to indicate that one of her parents was born in Canada. She knows both her parents were born in Amsterdam.

What is Lotte's …

- **Ulterior Purpose – get a Canadian passport**
- Motive – work in Canada without a visa

Let's apply our chart!

Lotte is Dutch. She fills out a Canadian passport application. She wants to procure a Canadian passport so that she can move to Canada and work without having to obtain a visa. She purposefully checks the box to indicate that one of her parents was born in Canada. She knows both her parents were born in Amsterdam.

Actus Reus	*Mens Rea*
Makes written/oral statement **[conduct]**	**Intent or Recklessness**
Circumstance: false or misleading	**Knowledge [or wilful blindness]**
Circumstance: in or out of Canada	**Knowledge/wilful blindness**
//////////////////////////	**For purpose of procuring passport/material alteration for self/other [ulterior purpose]**
{Voluntariness}	//////////////////////////

Subjective *Mens Rea* & Symmetry

Lotte is Dutch. She fills out a Canadian passport application. She wants to procure a Canadian passport so that she can move to Canada and work without having to obtain a visa. She purposefully checks the box to indicate that one of her parents was born in Canada. She knows both her parents were born in Amsterdam.

Actus Reus	*Mens Rea*
Makes written/oral statement [conduct] – ***Lotte checks box***	**Intent or Recklessness** ***Lotte intends to check the box***
False/misleading [circumstance] ***Lotte's parent was not born in Canada***	**Knowledge** ***Lotte knows both her parents were born in Amsterdam***
In or out of Canada [circumstance] ***Obviously!***	**Knowledge/wilful blindness** ***Obviously!***
//////////////////////////	**For purpose of procuring passport/material alteration for self/other [ulterior purpose]** ***Lotte's purpose is to procure a Canadian passport***
{Voluntariness} ***No air of reality. No need to address***	**//////////////////////////**

Let's try a trickier 'symmetry' chart…

Failure to stop after accident

320.16 (1) Everyone commits an offence who operates a conveyance and who at the time of operating the conveyance knows that, or is reckless as to whether, the conveyance has been involved in an accident with a person or another conveyance and who fails, without reasonable excuse, to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.

Symmetry – *find the conduct*

320.16 (1) Everyone commits an offence who operates a conveyance and who at the time of operating the conveyance knows that, or is reckless as to whether, the conveyance has been involved in an accident with a person or another conveyance and who fails, without reasonable excuse, to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.

Actus Reus	*Mens Rea*
Conduct	
{Voluntariness}	//////////////////////////

Symmetry – *what's next?*

320.16 (1) Everyone commits an offence who operates a conveyance and who at the time of operating the conveyance knows that, or is reckless as to whether, the conveyance has been involved in an accident with a person or another conveyance and **who fails**, without reasonable excuse, **to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.**

Actus Reus	*Mens Rea*
Conduct – **fail to stop conveyance, give name/address, offer assistance [omission]**	
{Voluntariness}	//////////////////////////

Symmetry – *what's left?*

320.16 (1) Everyone commits an offence who **operates a conveyance** and who at the time of operating the conveyance knows that, or is reckless as to whether, **the conveyance has been involved in an accident with a person or another conveyance** and ~~who fails~~, ~~without reasonable excuse~~, ~~to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.~~

Actus Reus	*Mens Rea*
Conduct – **fail to stop conveyance, give name/address, offer assistance**	
Circumstance - operates a conveyance	
Circumstance - conveyance involved in accident with person or another conveyance	
{Voluntariness}	//////////////////////////

Symmetry – *anything else?*

320.16 (1) Everyone commits an offence who ~~operates a conveyance~~ and who **at the time of operating the conveyance knows that, or is reckless as to whether**, ~~**the conveyance has been involved in an accident with a person or another conveyance**~~ and ~~who fails~~, **without reasonable excuse**, ~~to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.~~

Actus Reus	*Mens Rea*
Conduct – **fail to stop conveyance, give name/address, offer assistance**	
Circumstance - operates a conveyance	
Circumstance - conveyance involved in accident with person or another conveyance	**Knowledge/recklessness** [at the time of operating the conveyance]
[Circumstance] – without reasonable excuse	
{Voluntariness}	//////////////////////////

Symmetry – *now fill in the blanks!*

320.16 (1) Everyone commits an offence who ~~operates a conveyance~~ and who ~~at the time of operating the conveyance knows that, or is reckless as to whether~~, ~~**the conveyance has been involved in an accident with a person or another conveyance**~~ and ~~who fails~~, ~~without reasonable excuse~~, ~~to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.~~

Actus Reus	*Mens Rea*
Conduct – **fail to stop conveyance, give name/address, offer assistance**	
Circumstance - operates a conveyance	
Circumstance - conveyance involved in accident with person or another conveyance	**Knowledge/recklessness** [at the time of operating the conveyance]
[Circumstance] – without reasonable excuse	
{Voluntariness}	//////////////////////////

Symmetry – done!

320.16 (1) Everyone commits an offence who ~~operates a conveyance~~ and who ~~at the time of operating the conveyance knows that, or is reckless as to whether~~, ~~**the conveyance has been involved in an accident with a person or another conveyance**~~ and ~~who fails~~, ~~without reasonable excuse~~, ~~to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.~~

Actus Reus	*Mens Rea*
Conduct – fail to stop conveyance, give name/address, offer assistance	**Intent or Recklessness**
Circumstance - operates a conveyance	**Knowledge/wilful blindness**
Circumstance - conveyance involved in accident with person or another conveyance	**Knowledge/recklessness** [at the time of operating the conveyance]
[Circumstance] – without reasonable excuse	/
{Voluntariness}	//////////////////////////